

August 17, 2026
Dept. 9
Probate Tentative Rulings

4.	24PR0065	ESTATE OF JAMES HAYNES
FINAL DISTRIBUTION HEARING		

ON THE COURT'S OWN MOTION DUE TO LACK OF JUDICIAL COVERAGE, THE COURT WILL HEAR THIS MATTER ON SEPTEMBER 21, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. THERE WILL BE NO HEARING ON AUGUST 17, 2026.

At the hearing on the Petition for Final Distribution on June 15, 2026, the Court ordered Petitioner to fix the deficiencies listed in the tentative ruling and continued the hearing to August 17, 2026.

On July 8, 2026, Petitioner filed a Declaration and various documents within, including an updated Petition for Final Discharge, Receipts of Distribution for both beneficiaries, and an updated Inventory and Appraisal.

Letters of Administration/Letters Testamentary were issued on May 20, 2024, granting Petitioner full authority under the Independent Administration of Estates Act.

An updated Final Inventory and Appraisal was included within the Declaration. The Declaration clarified that the estate consisted of one savings account held at Golden 1 Credit Union, which had a balance of \$263,191.18 at the time of death. Decedent owed no real property at the time of death and thereby no change of ownership statement was filed as provided in section 480 of the California Revenue and Taxation Code.

Waivers of Account were executed by all the heirs entitled to distributions under the estate except Petitioner. No Waivers of Notice were filed.

Proof of Service of Notice of the hearing on the Petition was not filed. No one has filed a request for special notice in this proceeding.

The proposed distribution of the estate provides that the estate consists of cash in the amount of \$263,191.18 which has been fully distributed to the beneficiaries.

Per Local Rule 10.07.12 Petitions for final distribution must include a report of the following:

1. That no federal or California estate taxes are payable or that they have been paid;
2. That income taxes and all other taxes (e.g. supplemental real property taxes or personal property taxes, if any, have been paid or otherwise provided for.

If estate taxes are payable or paid: 1) the petition shall set forth whether said taxes were prorated pursuant to Probate Code section 20100, et seq., or the provisions of the will;

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and 2) the petition must reflect whether or not there are non-probate assets includable in the gross estate for estate tax purposes.

The updated Petition confirms all debts, expenses, and obligations of the estate have been paid. In addition, Petitioner provided to the Court a separate note confirming no federal or California estate or income taxes are payable.

The Petition requests:

1. Approve the final distribution of the estate;
2. Discharge Petitioner as Executor;
3. Release the bond (if any); and
4. **Upon filing of receipts and the Ex Parte Petition for Discharge, Petition may be discharged and released from all liability that may be incurred thereafter.**

To date, the Court has not received Proof of Service of Notice of the hearing on the Petition, nor any Waivers of Notice.

TENTATIVE RULING #4:

APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, SEPTEMBER 21, 2026, IN DEPARTMENT NINE.

A STATUS OF ADMINISTRATION HEARING IS SET FOR 8:30 A.M. ON MONDAY, AUGUST 9, 2027, IN DEPARTMENT NINE. PETITIONER OR COUNSEL ARE ORDERED TO PERSONALLY APPEAR, OR FILE A STATUS UPDATE WITH THE COURT AT LEAST TWO WEEKS BEFORE THAT HEARING.

IF A PARTY OR PARTIES WISH TO APPEAR BY ZOOM, PLEASE CONTACT THE COURT AT (530) 621-5867 AND MEETING INFORMATION WILL BE PROVIDED.